

Director

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Disclaimer

The information provided by the Robot is not legal advice and is not to be relied or acted upon as representing legal advice or conclusions of the CPSC or any CPSC employee. Additionally, the information in the Robot is not promised or guaranteed to reflect the most current legal developments.

In particular, the information provided below is wholly dependent upon information you have entered when navigating the Robot, and may not accurately reflect the requirements applicable to your product. No information conveyed by the Robot, or otherwise on the CPSC website, or in other CPSC materials, should be used as a substitute for advice of competent counsel regarding legal requirements.

Soaps

First, it is important to provide a brief overview of how the federal government regulates “soap,” and which federal agency has jurisdiction over which type of “soap.”

Traditional soaps made primarily from fats and alkalis are regulated by our agency, the CPSC. However, many items called “soaps” on the market today are in fact not actual soap; they are cleansers, detergents, or other types of products regulated as either a cosmetic or a drug by the Food and Drug Administration (FDA).

So, how do you tell if you are making a soap (CPSC) or a cosmetic/drug (FDA)? The FDA's website “[Frequently Asked Questions on Soap](#)” helps to lay out the differences:

“To meet the definition of soap in FDA’s regulations, a product has to meet three conditions:

1. **What it’s made of:** To be regulated as “soap,” the product must be composed mainly of the “alkali salts of fatty acids,” that is, the material you get when you combine fats or oils with an alkali, such as lye.
2. **What ingredients cause its cleaning action:** To be regulated as “soap,” those “alkali salts of fatty acids” must be the only material that results in the product’s cleaning action. If the product contains synthetic detergents, it’s a cosmetic, not a soap. You still can use the word “soap” on the label.
3. **How it’s intended to be used:** To be regulated as soap, it must be labeled and marketed only for use as soap. If it is intended for purposes such as moisturizing the skin, making the user smell nice, or deodorizing the user’s body, it’s a cosmetic. Or, if the product is intended to treat or prevent disease, such as by killing germs, or treating skin conditions, such as acne or eczema, it’s a drug. You still can use the word “soap” on the label.

You can read the entire regulation at [21 CFR § 701.20](#).”

CPSC staff recommends that you take a close look through the FDA’s guidance webpages, including “[Is it a Cosmetic, a Drug, or Both? \(Or Is It Soap?\)](#),” “[Frequently Asked Questions on Soaps](#),” and also “[Soaps & Lotions](#)” to determine if you are in fact making a soap, cosmetic, drug, or some combination thereof.

As stated above, the CPSC regulates true soaps (not cosmetics or drugs) that are made primarily of fats and alkalis and that are manufactured for consumer use. To that end, the CPSC has no specific labeling requirements for true soaps not primarily intended for use by children age 12 and under.

You can find out more information by visiting our [Business Guidance Page](#).

Mandatory Reporting Requirement

Additionally, you should always be mindful of your legal obligation under Section 15 of the Consumer Product Safety Act to report to the Commission when you receive information about your product that may reasonably support the conclusion that a product (1) fails to comply with any requirement enforced by the Commission; (2) contains a defect that could pose a hazard to consumers; or (3) creates an unreasonable risk of injury or death. Reports can be filed through the CPSC website at: www.saferproducts.gov, where you can also learn more about your legal responsibilities. There are also certain requirements about reporting lawsuits under Section 37 of the Consumer Product Safety Act. Additional details are available at: www.cpsc.gov/reporting, at: www.cpsc.gov/recallguidance, and in the [CPSC Recall Handbook](#).

This report provides a list of requirements that may apply to your product, depending upon how it is constructed. Manufacturers and importers of record are ultimately responsible for ensuring that their products are fully compliant with all applicable requirements.

Resources

There are several business resources that we would like to share with you:

1. **Webinars/Online Trainings** - the CPSC maintains a [Business Education Playlist](#) on our [CPSC YouTube Channel](#), providing instructional webinars on the requirements for a variety of consumer products.
2. **Newsletter** - the CPSC's Small Business Ombudsman sends out a near-monthly newsletter letting businesses know of upcoming trainings, webinars, and regulatory activity that may be of interest. To sign up for our Small Business Newsletter, please visit: www.cpsc.gov/Newsroom/Subscribe, check the box for "Business education", and provide your preferred email address.
3. **Online Sellers' Safety Guide** Are you a small business owner, handmaking products at home, like stuffed toys and clothing, to sell online? Are you a small importer or drop shipper, bringing into the United States, various kinds of products to sell in online platforms and marketplaces? Are you reselling secondhand goods in online thrift stores or on other third-party platforms? If you said yes to any one of those questions, then check out the CPSC's [Online Sellers' Safety Guide](#).

Contact Information

After reviewing this report, if you have follow-up questions, please contact the Small Business Ombudsman via our [Online Contact Form](#), or by calling (888) 531-9070, or (301) 504-7945.

Feedback on the Regulatory Robot

Lastly, your feedback on the Robot is important to us. You can share your experience by visiting: <https://business.cpsc.gov/robot/feedback>

Thank you for using the U.S. Consumer Product Safety Commission's Regulatory Robot!